

Master Agreement for Supplier Services

Calder Financial Group plc and Acme Technologies, Inc. | Calder Legal Template MA-2024 rev.3 | CLM-2026-Calder

THIS MASTER AGREEMENT FOR SUPPLIER SERVICES (this **Agreement**) is made on 12 August 2026 BETWEEN Calder Financial Group plc, registered in England and Wales, whose registered office is at 40 Bishopsgate, London EC2N 4AJ (the **Company**), and Acme Technologies, Inc., a Delaware corporation of 500 Market Street, San Francisco, California 94105 (the **Supplier**).

Drafted on the Company's standard form. Supplier amendments are shown in the margin and remain subject to Company Legal approval. The Company does not accept supplier paper.

ARTICLE 1 - INTERPRETATION

1.1 In this Agreement: **Deliverables** means anything the Supplier is required to provide under a Statement of Work; **Company Data** means all data provided by or on behalf of the Company or generated by the Services; **Losses** means all losses, liabilities, damages, costs, claims, demands, fines, penalties and expenses of any kind, whether direct or indirect and whether foreseeable or not; **Regulator** means any authority with supervisory jurisdiction over the Company.

1.2 A reference to a statute includes its subordinate legislation as amended. Headings are for convenience only and **do not affect interpretation**. Where a provision is expressed to be without limitation, no rule of ejusdem generis applies.

ARTICLE 2 - APPOINTMENT AND TERM

2.1 The Company appoints the Supplier on a non-exclusive basis to provide the Services described in each Statement of Work. The Company gives no volume commitment and may procure equivalent services from any third party at any time.

2.2 This Agreement commences on the date above and continues for thirty-six months unless terminated earlier. The Company may extend for successive twelve-month periods on written notice. The Supplier has no corresponding right of extension or renewal.

ARTICLE 3 - THE SERVICES

3.1 The Supplier shall provide the Services with the skill and care reasonably expected of a specialist supplier experienced in providing services of a similar type, scope and complexity to regulated financial institutions.

3.2 The Supplier shall comply with all Company policies notified to it from time to time, including the Company's Third Party Code of Conduct, Information Security Standard and Operational Resilience Policy, as each may be updated.

ARTICLE 6 - CHARGES AND PAYMENT

6.1 The Company shall pay the charges set out in the applicable Statement of Work within sixty days of receipt of a valid and undisputed invoice. Invoices must quote a valid purchase order number; invoices without one will be returned unpaid.

6.2 The Company may **set off** against any sum due to the Supplier any amount owed to the Company by the Supplier or any of its affiliates, whether under this Agreement or otherwise, and whether liquidated or not.

6.3 Charges are fixed for the first twenty-four months. Thereafter any increase requires ninety days' notice and shall not exceed the lesser of CPI and three per cent per annum.

ARTICLE 11 - REGULATORY OBLIGATIONS

11.1 The Supplier acknowledges that the Company is a regulated firm and that the Services may constitute a material outsourcing. The Supplier shall provide the Company and each Regulator with access to its premises, personnel, systems and records on request.

11.2 The Supplier shall not sub-contract any part of the Services without the Company's prior written consent, and remains liable for the acts and omissions of any approved sub-contractor as if they were its own.

ARTICLE 14 - INFORMATION SECURITY AND DATA

14.1 The Supplier shall implement and maintain technical and organisational measures no less protective than the Company's Information Security Standard, and shall notify the Company of any actual or suspected security incident within twenty-four hours of becoming aware of it.

14.2 All Company Data remains the property of the Company. On termination the Supplier shall return or securely destroy Company Data as directed and certify completion within thirty days.

ARTICLE 19 - INDEMNITIES

19.1 The Supplier shall indemnify, defend and hold harmless the Company, its affiliates and their respective officers, employees and agents against all Losses arising out of or in connection with: (a) any breach of this Agreement by the Supplier; (b) any act, omission, negligence or wilful misconduct of the Supplier or its personnel or sub-contractors; (c) any claim that the Deliverables infringe a third party's intellectual property rights; (d) any security incident affecting Company Data in the Supplier's possession or control; and (e) any regulatory investigation, fine, penalty or censure imposed on the Company to the extent attributable to the Supplier.

19.2 The indemnities in clause 19.1 are **primary obligations**, survive termination without limit of time, and are **not subject to any exclusion or limitation set out elsewhere in this Agreement**.

19.3 The Company's rights under this Article are in addition to, and not in substitution for, any other right or remedy available to it at law or in equity.

ARTICLE 20 - INSURANCE

20.1 The Supplier shall maintain, at its own cost, professional indemnity, cyber and public liability insurance each with a limit of not less than ten million pounds per claim, and shall provide certificates of currency annually and on request.

ARTICLE 22 - GENERAL PROVISIONS

22.1 **Notices.** Notices must be in writing and delivered by hand, recorded delivery or email to the addresses notified by each party for the purpose.

22.2 **Assignment.** The Company may assign or novate this Agreement to any affiliate or to a purchaser of the relevant business. The Supplier may not assign, novate, charge or otherwise deal with this Agreement without the Company's prior written consent.

22.3 **Entire agreement.** This Agreement constitutes the entire agreement between the parties and supersedes all prior arrangements. Nothing limits liability for fraud or fraudulent misrepresentation.

22.4 **Responsibility for Losses.** Each party is responsible for the Losses it causes. The Supplier shall be responsible for all Losses suffered or incurred by the Company arising out of or in connection with the Supplier's performance or non-performance of this Agreement, including loss of profit, loss of revenue, loss of anticipated savings, loss or corruption of data, regulatory fines and reputational harm. **No financial cap applies to the Supplier's responsibility under this clause.** The Company's responsibility to the Supplier is limited to the charges properly invoiced and unpaid at the date of the relevant claim.

22.5 **Governing law.** This Agreement and any non-contractual obligation arising out of it are governed by the laws of England and Wales, and the parties submit to the exclusive jurisdiction of the courts of England and Wales.

SUPPLIER MARGIN NOTES - FOR COMPANY LEGAL REVIEW

Clause	Supplier position
19.2	Supplier requests the indemnities be made subject to the responsibility provisions, not carved out of them.
22.4	Supplier requests an aggregate financial cap and exclusion of indirect and consequential Losses.
6.2	Supplier requests set-off be limited to sums due under this Agreement only.
11.1	Supplier requests regulator access be on reasonable notice and during business hours.

Status: with Company Legal. No Company response received as at the date of this draft.